



**MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY**

REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA
NUMBER 19 OF 2020
ABOUT
ELECTRONIC LAND INFORMATION SERVICES

BY THE GRACE OF GOD ALMIGHTY

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA,

Considering: a. that in order to improve land information services easily, quickly and at low cost,

The Regulation of the Minister of Agrarian Affairs and Spatial Planning has been stipulated
Room/Head of National Land Agency Number 5
2017 Law on Land Information Services
Electronically;

b. that to expand the subject of information services
and to encourage increased investment and
to provide ease of doing business in Indonesia, it is necessary
improvement a number of provision in
provision of electronic land services
so that the Ministerial Regulation as referred to
in letter a needs to be replaced;

c. that based on the considerations as follows
referred to in letters a and b, need to determine
Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the Agency
National Land Agency on Information Services
Electronic Land Administration;

Remembering: 1. Article 17 paragraph (3) of the Constitution of the Republic
Indonesia 1945;

2. Law Number 5 of 1960 concerning Regulations

Basic Agrarian Principles (State Gazette of the Republic
Indonesia 1960 Number 104, Additional Sheet
Republic of Indonesia Number 2043);

3. Law Number 39 of 2008 concerning

Ministry of State (State Gazette of the Republic
Indonesia 2008 Number 166, Additional Sheet
Republic of Indonesia Number 4916);

4. Government Regulation Number 24 of 1997 concerning

Land Registration (State Gazette of the Republic of Indonesia)
1997 Number 59, Supplement to the State Gazette
Republic of Indonesia Number 3696);

5. Government Regulation Number 37 of 1998 concerning

Regulations on the Position of Land Deed Officials
(State Gazette of the Republic of Indonesia 1998)
Number 52, Supplement to the State Gazette of the Republic of Indonesia
Indonesia Number 3746) as amended
with Government Regulation Number 24 of 2016
concerning Amendments to Government Regulation Number 37
1998 concerning Regulations on the Position of Manufacturing Officials
Land Deed (State Gazette of the Republic of Indonesia Year
2016 Number 120, Supplement to the State Gazette of the Republic of Indonesia
Indonesia Number 5893);

6. Government Regulation Number 128 of 2015 concerning

Types and Tariffs for Types of Non-State Revenue
Taxes applicable to the Ministry of Agrarian Affairs and Spatial Planning
National Land Agency (State Gazette)
Republic of Indonesia 2015 Number 351, Supplement
State Gazette of the Republic of Indonesia Number 5804);

7. Presidential Regulation Number 47 of 2020 concerning

Ministry of Agrarian Affairs and Spatial Planning (State Gazette
Republic of Indonesia 2020 Number 83);

8. Presidential Regulation Number 48 of 2020 concerning the Agency

National Land Affairs (State Gazette of the Republic of
Indonesia 2020 Number 84);

9. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the Agency
National Land Law Number 16 of 2020 concerning
Organization and Work Procedures of the Ministry of Agrarian Affairs and Spatial Planning
National Land Agency (State Gazette)
Republic of Indonesia 2020 Number 985);

DECIDE:

To stipulate: REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/HEAD OF
NATIONAL LAND AGENCY ON SERVICES
ELECTRONIC LAND INFORMATION.

PIG

GENERAL REQUIREMENTS

article 1

In this Ministerial Regulation, the following terms are defined as:

1. Electronic Information is one or a set of data
electronics, including but not limited to writing, sound, images, maps,
designs, photographs, *electronic data*
interchange (EDI), electronic mail, telegram, telex,
telecopy or similar, letters, signs, numbers, codes
access, symbols, or perforations that have been processed
has meaning or can be understood by people who
able to understand it.
2. Electronic Documents are any electronic information that is created,
forwarded, sent, received, or
stored in analog, digital, electromagnetic form,
optical, or similar, which can be seen, displayed,
and/or heard through a Computer or System
Electronics, including but not limited to writing,
sounds, images, maps, designs, photographs or similar, letters, signs,
numbers, access codes, symbols or perforations that have meaning or
significance or can be understood by
people who are able to understand it.
3. Electronic systems are a series of devices and
electronic procedures that serve to prepare,
collect, process, analyze, store,
display, announce, send, and/or
disseminate electronic information.

4. Electronic Land Information Services are
the process of providing information electronically includes
confirmation of conformity of physical data and legal data
Land Title Certificate and other information at
database.
5. Certificate Checking Service is a service for
checking the conformity of physical data and legal data
Land Title Certificate with electronic data on
database.
6. Land Book is a document in the form of a list
contains physical data and legal data of a land registration object
for which rights already exist.
7. A certificate is a document that proves rights as
referred to in Article 19 paragraph (2) letter c of the Law
Law Number 5 of 1960 concerning Basic Regulations
Agrarian Principles for land rights, rights
management, waqf land, ownership rights to housing units
arrangement and respective mortgage rights
has been recorded in the relevant land book.
8. Physical Data is information regarding the location, boundaries and
land area and apartment units
registered, including information regarding the existence of
building or part of a building above it.
9. Legal Data is information regarding legal status
registered land plots and apartment units,
rights holders and other parties as well as other burdens
that burdened him.
10. The applicant is the party submitting the application.
11. The Land Deed Making Official, hereinafter referred to as PPAT, is
a public official who is given the authority to make authentic deeds
regarding certain legal acts regarding land rights or property rights.

Over the Apartment Unit.

12. Licensed Cadastral Surveyor Services Office is
Licensed Cadastral Surveyor in the form of a legal entity
both individual and firm businesses.

13. Ministry of Agrarian Affairs and Spatial Planning/Land Agency

National, hereinafter referred to as the Ministry, is
ministry Which organize affairs
government in the field of agrarian/land and governance
room.

14. Minister of Agrarian Affairs and Spatial Planning/Head of Agency

National Land Affairs, hereinafter referred to as the Minister
is the minister who organizes affairs
government in the field of agrarian/land and governance
room

15. Regional Office of the National Land Agency

hereinafter referred to as the Regional Office is an agency
vertical Ministry of Agrarian Affairs and Spatial Planning/Agency
National Land in the provinces under
and is responsible to the Minister of Agrarian Affairs and Spatial Planning
Room/Head of the National Land Agency.

16. The Land Office is a vertical agency of the Ministry of Land Affairs.

Agrarian and Spatial Planning/National Land Agency in
districts/cities that are under and responsible for
responsible to the Minister of Agrarian Affairs and Spatial Planning/Head
National Land Agency through the Head of Office
National Land Agency Area.

CHAPTER II

TYPES OF LAND INFORMATION SERVICES

Article 2

- (1) Land information services are provided in a
electronically through an electronic system in the form of an application
Land Information Services provided by
Ministry.
- (2) Types of Electronic Land Information Services
as referred to in paragraph (1), consists of:
- a. Certificate checking;
 - b. Land Registration Certificate;
 - c. textual/graphical data information;
 - d. Land Value information;
 - e. coordinate point information;

- f. *Global Navigation Satellite* data package information
*System (GNSS)/Continuously Operating Reference
System (CORS);*
 - g. information on land ownership history;
 - h. land history information; and
 - i. other information services to be determined
- Then.

(3) The Minister has the authority to carry out development, maintenance, and management of the Service database Electronic Land Information.

Article 3

In addition to the types of Electronic Land Information Services as referred to in Article 2 paragraph (2), the Ministry also provides land map information and information spatial planning (GISTARU) which is open and can be accessed generally available to the general public and free of charge.

Article 4

- (1) Application for land information services as referred to in referred to in Article 2 is submitted electronically by:
- a. individual;
 - b. Notary and/or PPAT;
 - c. Licensed Cadastral Surveyor Services Office;
 - d. Legal entity established according to law
Indonesia and domiciled in Indonesia;
 - e. Ministries/Institutions, Government Agencies
Non-Ministries/Institutions, and Regional Governments;
 - f. Religious, social, foundation or other bodies
cooperative;
 - g. Foreign legal entities that have representatives in
Indonesia;
 - h. Representatives of foreign countries and/or representatives of foreign agencies
International;
 - i. other parties determined by the Minister.

- (2) Individuals as referred to in paragraph (1) letter a includes:
- a. Indonesian citizens; or
 - b. Foreign citizens domiciled in Indonesia, whose existence provides benefits, doing business, working, or investing in Indonesia and has a residence permit in accordance with provisions of laws and regulations.
- (3) In the event that the Applicant is a Foreign Citizen can only apply for a Certificate of Completion Land Registration and Land Value Information as referred to in Article 2 paragraph (2) letter b and the letter d.
- (4) The application as referred to in paragraph (1) only can be submitted after the applicant registers himself/herself at land information service application.
- (5) After registering as referred to in Article (4), the applicant obtains an identity that then used as an identifier in application.
- (6) The identity as referred to in paragraph (5) includes: others in the form of a username *and* password (*password*).

CHAPTER III

LAND INFORMATION SERVICES

Article 5

- (1) After the Applicant obtains the identity as referred to in Article 4 paragraph (5), the Applicant may access the Information Services application Electronic Land Management.
- (2) Requirements for types of land information services as referred to in Article 2 paragraph (2) letter a, letters b and c, by attaching:
- a. identity of the right holder and power of attorney if authorized;

b. Original certificate and/or can describe the data

The certificate in the application form is in accordance with original;

c. a statement from the land rights holder

about:

1) authenticity of the Certificate;

2) is the actual rights holder
true; and

3) act in good faith and be responsible
completely on the use of the data accessed
of this service, and/or

d. letter of assignment from and/or letter of agreement
work with authorized agencies.

(3) The requirements for land information services as referred to in Article 2 paragraph (2) letters d to letter i in accordance with the provisions of laws and regulations invitation.

(4) Requirements for applying for Land Information Services electronically attached in the form of a document Electronic.

(5) If the credibility of the rights holder is in doubt, then
The applicant is the proxy of the Land Rights holder, Land Deed Official, Notary, Office
State Auction, Licensed Cadastral Surveyor Services Office,
Banking and other parties are obliged to reject the application
Electronic Land Information Services.

Article 6

(1) Electronic Land Information Services can be provided after land data is available in the Ministry's database.

(2) In the case of a database as referred to in paragraph (1) is not yet available, the application is made online manual.

(3) The applicant receives confirmation from the Service application. Electronic Land Information regarding availability of land data.

Article 7

- (1) Applications that have met the requirements
as referred to in Article 5 and the Applicant has received
confirmation that the data is available in the Ministry's database as
referred to
In Article 6 paragraph (3), the Applicant obtains proof of application
registration issued by the system.
- (2) Proof of registration of the application as referred to in paragraph (1)
must at least contain:
 - a. application registration file number;
 - b. date of application registration;
 - c. Applicant's name; and
 - d. Information Service fee payment codeElectronic Land Management.

Article 8

Land Information Services as referred to in Article 2 paragraph (2) are
subject to fees in accordance with the provisions of statutory regulations.

Article 9

- (1) The applicant makes payment of the Service fee.
Electronic Land Information as
referred to in Article 8 through a perception bank no later than 3
(three) days after the date of application registration.
- (2) Application for Land Information Services in person
Electronics are processed after the application data and application
registration fee are confirmed by the system or
Land Office.
- (3) In the case of the time period as referred to in
paragraph (1) expires and the Applicant does not make payment,
the Applicant must register
re-application.

Article 10

- (1) Land information as referred to in Article 2 paragraph (2) has the same information value as electronic data, both Physical Data and Digital Data. Juridical in the database, on the day, date and time when the results of land information services are delivered.
- (2) The results of the Electronic Land Information Service may only be used for the benefit of the Applicant and in accordance with the intended use, and not used for other purposes.
- (3) The Land Office is responsible for information listed in the results of land information electronic.
- (4) In the event of any discrepancy in the Service results Electronic Land Information with Land Title Certificate, the Applicant can request clarification electronically or contact the Land Office. Local land by bringing evidence registration of the application as referred to in Article 7 and other requirements in accordance with the provisions of laws and regulations.

Article 11

- (1) Changes to land information in the database as referred to in Article 10 paragraph (1) may be made by the Minister, Head of the Regional Office and Head of Land Office.
- (2) In the case of changes to land information in the database made by the Minister or Head of the Regional Office, then submitted to the Head of the Land Office.
- (3) In the case of land information services in the form of Certificate checking then:
 - a. The results of the Certificate Checking Service are valid for 7 (seven) calendar days; and
 - b. if there are changes to land information in the database within a period of 7 (seven) days from the results of the Certificate Checking Service published, and the results of the Checking Service

The previous certificate is no longer valid, so the Head
The Land Office conveyed the changes
land information to the Applicant.

CHAPTER IV

SANCTIONS

Article 12

Misuse of the results of electronic land information services is entirely the responsibility of the Applicant and may be subject to sanctions in the form of closing the Applicant's access to Electronic Land Information Services.

Article 13

- (1) Sanctions in the form of closing access are imposed on:
 - a. Land Deed Making Officials, Notaries, State Auction Offices, Licensed Cadastral Surveyor Services Offices, Banks that violate the provisions of Article 5 paragraph (5); and
 - b. Applicants who violate the provisions
Article 10 paragraph (2).
- (2) Closing access as referred to in paragraph (1) may be done temporarily or permanently.
- (3) The provisions for closing access as referred to in paragraph (2) are implemented in accordance with the provisions for the implementation of Electronic Systems.

CHAPTER V

CLOSING

Article 14

At the time this Ministerial Regulation comes into force, the Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency of the Republic of Indonesia Number 5 of 2017 concerning Electronic Land Information Services (State Gazette of the Republic of Indonesia 2017 Number 612) is revoked and declared invalid.

Article 15

This Ministerial Regulation shall come into force on the date of promulgation.

So that everyone knows, order
promulgation of this Ministerial Regulation by placing it in the State Gazette
of the Republic of Indonesia.

Established in Jakarta
on September 17, 2020

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA,

Signed

SOFYAN A. DJALIL

Promulgated in Jakarta on
September 30, 2020

DIRECTOR GENERAL
LEGISLATION
MINISTRY OF LAW AND HUMAN RIGHTS
REPUBLIC OF INDONESIA,

Signed

WIDODO EKATJAHJANA

STATE GAZETTE OF THE REPUBLIC OF INDONESIA 2020 NUMBER 1130

Copy true to the original
Head of Legal Bureau,

A handwritten signature in black ink, appearing to be 'Vagus Suyadi', written over a rectangular stamp area.

Dr. Vagus Suyadi, SH, M.Si.
NIP. 19630817 198503 1 005